

Praveen Kumar @ Praveen Chauhan v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 1 July 2024 · 2024:AHC:106189-DB · Writ - C No. 19648 of 2024 · **Writ against provisional assessment premature; no coercion till final assessment.**

HEADNOTE

A writ against a mere notice of provisional assessment is premature while the consumer's objections remain pending. The Assessment Officer must follow the Electricity Act and the Electricity Supply Code, 2005 when passing the final assessment; until then, no coercive measure may be taken on the provisional assessment.

FACTUAL SUMMARY

Praveen Kumar challenged a notice of provisional assessment dated 30 June 2023 before the Allahabad High Court. None appeared for him even on the revised call. Counsel for the respondent electricity corporation submitted that the writ was premature because the notice was only a provisional assessment. The petitioner's objections dated 30 September 2023 were still pending. Counsel stated those objections would be considered at final assessment and that no coercive action would be taken on the provisional assessment until then.

HOLDING-UNITS

INTERPLAY · EA2003::126

provisional assessment — prematurity of writ

HOLDING

A writ challenging a notice of provisional assessment is premature while the consumer's objections remain pending. The Assessment Officer, when passing the final assessment, shall follow the procedure under the Electricity Act and the Electricity Supply Code, 2005; until that order is passed, no coercive measure may be taken against the consumer on the basis of the provisional assessment. ¶ 4-6

FLAG Order cites 'the Act' and Electricity Supply Code, 2005 without numbering s.126 or a Code clause; keyed to EA2003::126 as the provisional/final assessment scheme.

PRINCIPLE TAGS

s126-procedural-strictness-notice-and-hearing A writ against a mere notice of provisional assessment is premature while the consumer's objections remain pending. The Assessment Officer must follow the Electricity Act and the Electricity Supply Code, 2005 when passing the final assessment; until then, no coercive measure may be taken on the provisional assessment. ¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PROVISIONAL ASSESSMENT DATED 30.6.2023 AND OF THE PETITIONER'S OBJECTIONS DATED 30.9.2023

Left to the Assessment Officer at final assessment. ¶ 4-6